The Chairperson and other members are appointed by the Central Government. However, the Chairperson is appointed on the recommendation of a three-member selection committee constituted by the Central Government under the Chairmanship of the minister-in-charge of the Ministry or the Department of Women and Child Development.[4]

The salaries, allowances and other service conditions of the Chairperson and members are also prescribed by the Central Government. However, they cannot be varied to their disadvantage after their appointment.

The Chairperson and members hold office for a term of three years. They are not eligible for appointment for more than two terms. Further, the upper age limit for holding the office is as follows:

1. In the case of the Chairperson, it is 65 years
2. In the case of the members, it is 60 years

The Chairperson or a member can relinquish the office at any time by addressing the resignation to the Central Government.

The Central Government can remove the Chairperson from the office on the ground of proven misbehaviour or incapacity. Further, it can also remove the Chairperson or any member from the office under any of the following circumstances:

1. Adjudged as insolvent
2. Engages, during the term of office, in any paid employment outside the duties of the office
3. Refuses to act or becomes incapable of acting
4. Declared of unsound mind by a competent court
5. Abused the office which renders the continuance in the office as detrimental to the public interest
6. Convicted and sentenced to imprisonment for an offence which (in the opinion of the Central Government) involves moral turpitude
7. Absents himself/herself from three consecutive meetings of the Commission[5].

Functions

The functions of the Commission are as follows:

1. To examine and review the safeguards provided by the laws for the protection of child rights and recommend measures for their effective implementation
2. To present to the Central Government, annually and at such other intervals as it may deem fit, reports upon the working of those safeguards
3. To inquire into violation of child rights and recommend initiation of proceedings in such cases